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Fine for GDPR Violation

The National Supervisory Authority completed an investigation in May 2022 regarding the company Wens Experience SRL and found a violation of the provisions of Article 28 paragraph (2) of the General Data Protection Regulation (GDPR). The company Wens Experience SRL, as a processor on behalf of an operator, was fined in the amount of 7,418.55 lei (equivalent to 1,500 EURO).

The investigation was initiated following the notification of a personal data security breach by its processor under the General Data Protection Regulation from the involved operator. During the investigation, it was found that the processor Wens Experience SRL recruited another processor for the processing of the operator's employees' data without having previously obtained a specific or general written authorization from the operator, thus violating the provisions of Article 28 paragraph (2) of the GDPR.

It is specified that, according to Article 28 paragraph (2) of the GDPR, "The processor shall not engage another processor without prior specific or general written authorization of the operator. In the case of a general written authorization, the processor shall inform the operator of any intended changes concerning the addition or replacement of other processors, thereby giving the operator the opportunity to object to such changes."

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